



Re: [EXTERNAL] Re: Amendment to Participation Agreement 

Clare Vance1 to: Judith Bird

13/01/2021 17:57

Cc: ddally, Cameron Bull, Dario Ruocco1, Louise Ashbrook, Paul Murphy1

Dear Judith,

Thank you for bringing the additional Order Forms to my attention. There are only seven Order Forms currently active, so I have reduced the list accordingly (and removed the remaining hyperlink as it seemed to relate to internal Salesforce information and is not necessary in this agreement).

As I understand more Order Forms may issue from time to time in relation to the HSE, I have added language to include them in scope.

I am surprised by your removal of the co-operation language since this would be reneging on the commitment made by Salesforce when you approved this language for inclusion in the TOU. This requires Salesforce to co-operate to the extent required solely as set out in the TOU, not for Salesforce to solely ensure the success of the system. I have reinserted the wording.



Amendment 1 to IBM Ireland Participation Agreement (5) IBM 13Jan2021.docx

Kind regards,

CLARE VANCE

Senior Attorney, IBM Ireland

Mobile: 353-86-021-2973

E-mail: clarevance@ie.ibm.com



IBM House
Shelbourne Road
Ballsbridge
Dublin 15
Ireland

IBM Ireland Limited
Registered in Ireland with no.: 16226
Registered Office: IBM House, Shelbourne Road,
Ballsbridge, Dublin 4, Ireland

Upcoming leave: Tuesday 12 January 2021

PREPARED BY IBM ATTORNEY / PRIVILEGE REVIEW REQUIRED

This e-mail and its attachments, if any, may contain information that is private, confidential, or protected by attorney-client, solicitor-client or other privilege. If you received this e-mail in error, please delete it from your system without copying it and notify me of the misdirection by reply e-mail.

Judith Bird	Dear Clare I have now heard back from our Reve...	12/01/2021 19:00:38
From:	Judith Bird < judith.bird@salesforce.com >	
To:	Clare Vance1 < clarevance@ie.ibm.com >	
Cc:	Cameron Bull < Cameron.Bull@ibm.com >, Dario Ruocco1 < DARIORUO@uk.ibm.com >, Louise Ashbrook < louise.ashbrook@salesforce.com >, Paul Murphy1 < paul.g.murphy@ie.ibm.com >	
Date:	12/01/2021 19:00	
Subject:	[EXTERNAL] Re: Amendment to Participation Agreement	

Dear Clare

I have now heard back from our Revenue Recognition team in relation to the Amendment to the PA, and there are a couple of points that we need to address as follows:

1. As you may be aware, a number of additional Order Forms have been entered into since

the beginning of January and these will need to be referenced in the Amendment.

2. We need to delete the "co-operation" language in the Amendment. The reason for this is that the Rev Rec team, as part of their review, need to consider any commitments made within the contract and assess them for potential performance obligations. Anything deemed a performance obligation then has to be assessed further for potential revenue allocation.

I have explained that the provision relates to a change to the TOU, and therefore, it does not place a primary obligation on SFDC. However, the response has been as follows: "In the case of this language, it is unclear what it would mean to cooperate with IBM and the HSE in this case because it's uncertain what role SFDC actually has to play in the Covid 19 Vaccination System (other than the primary obligation of providing the Services). In other words, should IBM/HSE try to enforce this language, what sort of role would SFDC play in ensuring the success of the Covid 19 Vaccination System?"

Due to this lack of clarity, it has been requested that this wording is deleted in the Amendment.

I attach a revised draft of the Amendment to reflect these changes. Please can you kindly advise if this is acceptable, whereupon we can proceed to signature.

Best regards

Judith

Judith Bird

Senior Corporate Counsel | [Salesforce](#)

Global Philanthropy Chair | [Faithforce](#)

Mobile: +44 (0)7391 399343

On Thu, 7 Jan 2021 at 12:27, Clare Vancel <clarevance@ie.ibm.com> wrote:

Many thanks Judith

Kind regards,

CLARE VANCE

Senior Attorney, IBM Ireland

Mobile: 353-86-021-2973
E-mail: clarevance@ie.ibm.com



IBM House
Shelbourne Road
Ballsbridge
Dublin 15
Ireland

IBM Ireland Limited
Registered in Ireland with no.: 16226
Registered Office: IBM House, Shelbourne Road,
Ballsbridge, Dublin 4, Ireland

Upcoming leave: none planned

PREPARED BY IBM ATTORNEY / PRIVILEGE REVIEW REQUIRED

This e-mail and its attachments, if any, may contain information that is private, confidential, or protected by attorney-client, solicitor-client or other privilege. If you received this e-mail in error, please delete it from your system without copying it and notify me of the misdirection by reply e-mail.

From: Judith Bird <judith.bird@salesforce.com>
To: Clare Vance1 <clarevance@ie.ibm.com>
Cc: Louise Ashbrook <louise.ashbrook@salesforce.com>, Dario Ruocco1 <DARIORUO@uk.ibm.com>, Paul Murphy1 <paul.g.murphy@ie.ibm.com>, Cameron Bull <Cameron.Bull@ibm.com>
Date: 07/01/2021 12:23
Subject: [EXTERNAL] Re: Amendment to Participation Agreement

This Message Is From an External Sender

This message came from outside your organization.

Dear Clare

Thank you for the revised draft of the Amendment to the PA, together with the copies of the Order Forms and PO. I will now forward the Amendment to our internal approvals team and will keep you updated if any further changes are required.

Thanks.

Best regards

Judith

Judith Bird

Senior Corporate Counsel | [Salesforce](#)

Global Philanthropy Chair | [Faithforce](#)

Mobile: +44 (0)7391 399343

On Tue, 5 Jan 2021 at 14:36, Clare Vance1 <clarevance@ie.ibm.com> wrote:
Dear Judith,

I hope you were able to enjoy the new year and long weekend.

Thank you for your email. I attach updated draft PA Amendment where I have accepted agreed changes and inserted explanatory comments along with any new/remaining points.

For ease of reference though you received them previously, I attach the final order forms - the draft amendment now reflects these reference numbers. As the services being provided to the HSE

relate to all three order forms, they must all be referenced in the amendment. That meant that the proposed effective date of the amendment was not so clear. Following your logic of using the date on the Order Form, the earliest date was 17 December (Mulesoft), but as that pre-dates the PA I instead inserted the date of PA execution, 22 December 2020. You may prefer to have an effective date of 31 December 2020, being the date of the related PO, also attached.

Regarding sections 7.3 and 7.4, these changes are simply to reflect the longer notice period that SFDC agreed to provide to the HSE. In the TOU, the longer notice period applies to any breach - a breach due to non-payment was not carved out of this extension, so should not be excluded in the amendment.

I look forward to hearing from you.

Kind regards,

CLARE VANCE

Senior Attorney, IBM Ireland

Mobile: 353-86-021-2973
E-mail: clarevance@ie.ibm.com

IBM House
Shelbourne Road
Ballsbridge
Dublin 15
Ireland

IBM Ireland Limited
Registered in Ireland with no.: 16226
Registered Office: IBM House, Shelbourne Road,
Ballsbridge, Dublin 4, Ireland

Upcoming leave: none planned

PREPARED BY IBM ATTORNEY / PRIVILEGE REVIEW REQUIRED

This e-mail and its attachments, if any, may contain information that is private, confidential, or protected by attorney-client, solicitor-client or other privilege. If you received this e-mail in error, please delete it from your system without copying it and notify me of the misdirection by reply e-mail.

From: Judith Bird <judith.bird@salesforce.com>
To: Clare Vance1 <clarevance@ie.ibm.com>
Cc: Louise Ashbrook <louise.ashbrook@salesforce.com>
Date: 04/01/2021 17:32
Subject: [EXTERNAL] Amendment to Participation Agreement

Dear Clare

Thank you for sending through your proposed amendments to the QSTs which I had prepared to take account of the changes we had agreed to the TOU. As I mentioned last week, given that the Order Forms were signed last week, we will need to revert to the original plan of dealing with these amendments by way of a formal contractual amendment to the Irish Participation Agreement.

I have therefore reviewed your proposed amendments to the QSTs and transposed those which I can potentially accept into the Contract Amendment which I had previously proposed (please see attached). Please note:

1. This document will require formal approval from our Revenue Recognition department prior to finalisation and it is therefore subject to their comments. However, I wanted to get the text agreed between ourselves first before sending it to them for review. Once you and I have agreed the document, I'll pass it to the Revenue Recognition team and will let you know if any further changes are required.

2. A couple of the amendments which you had proposed did not seem appropriate/applicable as follows:

(a) You included an amendment to Section 7.3 of the Reseller Agreement. However, that Section relates to non-payment by the Customer to IBM and a discretion to suspend by SFDC in such circumstances. The amendments to Section 5.1 of the TOU do not relate to suspension in relation to non-payment by the Customer to IBM. I do not therefore agree to this proposed amendment.

(b) The amendment you have proposed to Section 7.4 is rejected for the same reasons as set out in (a).

I look forward to hearing from you when you have had an opportunity to review the revised draft.

Best regards

Judith

Judith Bird
Senior Corporate Counsel | [Salesforce](#)
Global Philanthropy Chair | [Faithforce](#)
Mobile: +44 (0)7391 399343

[Attachment "Amendment to IBM Ireland Participation Agreement (2) 4 Jan 2021.docx" deleted by Claire Varcoe@Ireland@IBM]

[Attachment "Amendment 1 to IBM Ireland Participation Agreement (1) 07 DEC 11 Jan 2021.docx" deleted by Claire Varcoe@Ireland@IBM]